

CONTRACT AGREEMENT 2021-2022

The agreement is made between:

PARTY A: FUSION RESORT CAM RANH		PARTY B:	
Address:	Lot D10B Northern of Cam Ranh Peninsula, Nguyen Tat Thanh Boulevard, Cam Lam District, Khanh Hoa Province, Viet Nam	Address:	
Telephone:	84 258 3 989 770	Telephone:	
Fax:	84 258 3 989 783	Fax:	
Email:	reservations.frcc@fusionhotelgroup.com	Email:	
Representative:	Mr. DAWID KOEGELENBERG	Representative:	
Title:	General Manager	Title:	

Validity: 01 November 2021 – 31 October 2022
 Market: All (excluding Korea)
 Currency: VND
 Rate basis: per room per night

Room type	Occupancy (Existing bedding)	Room rate		
	A=adult C=child under 6	Low season 01 Nov 2021 – 25 Dec 2021 03 Jan 2022 – 29 Jan 2022 06 Feb 2022 – 28 Feb 2022	Shoulder season 01 Mar 2022 – 29 Apr 2022 03 May 2022 – 30 Jun 2022 05 Sep 2022 – 31 Oct 2022	High & Peak season 26 Dec 2021 – 02 Jan 2022 30 Jan 2022 – 05 Feb 2022 30 Apr 2022 – 02 May 2022 01 Jul 2022 – 04 Sep 2022
Chic Suite	2A+1C	6,074,000	6,774,000	7,475,000
Ocean View Suite	2A+1C	7,709,000	8,410,000	9,110,000
Two-Bedroom Ocean View Suite	4A+1C	9,344,000	10,045,000	10,746,000
Hideaway Pool Villa	2A+1C	8,176,000	9,344,000	10,512,000
Ocean View Pool Villa	2A+1C	10,512,000	11,446,000	12,381,000
Beach Front Pool Villa	2A+1C	12,848,000	13,782,000	14,717,000
Two-Bedroom Ocean View Pool Villa	4A+1C	14,950,000	15,885,000	16,819,000
Four-Bedroom Beach Front Pool Villa	8A+2C	Upon request	Upon request	Upon request

Conditions:

- * Above contracted rates are in Vietnam Dong and inclusive of service charge (5%) and applicable value added tax (10%).
- * Rates are non-commissionable and based on per room per night
- * Rates include **bed, breakfast and spa treatments per night per person** up to 2 people for 01 bedroom type, 04 people for 02 bedroom type, 08 people for 04 bedroom type.
- * GIT rates (>= 10 rooms) are available upon request.
- * Booking must mention code of market or tour operator's name for reference
- * **Partner is required to clearly display the ALL SPA INCLUSIVE offer in their brochure and marketing collaterals**

Minimum stay:

- * Bookings received for stay on 26 Dec 2021 – 02 Jan 2022 will be confirmed with a minimum 2 nights.
- * Bookings received for stay on 30 January 2022 – 05 February 2022 will be confirmed with a minimum 2 nights.
- * Bookings received for stay on 30 April 2022 – 02 May 2022 will be confirmed with a minimum 2 nights.

Special offers:

- * Early Bird 30 Days: Bookings reserved 30 days in advance of arrival will receive a 10% discount on room rates (NOT COMBINABLE).
- * Early Bird 60 Days: Bookings reserved 60 days in advance of arrival will receive a 20% discount on room rates (NOT COMBINABLE).
- * Stay minimum 4 nights, receive 25% discount on room rates (NOT COMBINABLE).

✓ These offers can be applied to room rate and extra bed, not applied to meal rates (if any)

✓ The special offer must be promoted and listed on catalogue/brochure/flyer of tour operators and copy to resort for reference.

Promotions/offers are not applied in the below dates:

26 December 2021 – 02 January 2022
 30 January 2022 – 05 February 2022
 30 April 2022 – 02 May 2022

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Added value benefits:

1. Spa treatments included in the room rate – minimum 2 treatments per night per adult guaranteed, additional treatments are subject to availability as per spa policy and not subject to any extra charges
2. Daily breakfast anywhere, anytime
3. One complimentary selected beverage at the bar per guest per stay
4. Complimentary shuttle bus from resort to Nha Trang city as schedule
5. Complimentary Yoga class subject to the resort's schedule.
6. Healthy welcome drink upon arrival
7. Turn down service if staying 2 nights & more
8. Free Wi-Fi internet access
9. Free use of fitness center

Meal rate:

Meal rates per person	From 12 years old +	From 6 - under 12 years old
Half Board (Set menu)	VND 1,035,000	VND 517,000
Full Board (Set menu)	VND 1,725,000	VND 862,000

Children under 6 years old: Complimentary food from children menu. Beverage charged as consumption at standard rates.

- Half Board is one meal daily:
1 x lunch OR dinner daily (3 course with starter, main & dessert) selected from a la carte menu at Fresh Restaurant
- Full Board is two meal daily:
1 x lunch (2 course with start & main OR main & dessert) PLUS 1 x dinner (3 course with starter, main & dessert) selected from a la carte menu at Fresh Restaurant

Distribution of Contracts:

- Contract Rates are valid for bundled, packaged or brochure international leisure business only. Contract rates are only valid for bona fide Tour Operators.
- Hotel reserves/affirms the obligation of the contract partner to charge a MINIMUM MARK-UP 10% on this contracted rate to Tour operator, international wholesaler and others.
- Contract rates cannot be offered by the Tour Operator direct to the consumer via the Internet, or by any other internet channels, through owned, affiliated or subsidiary companies, without prior written approval from the hotel.
- The Contract rates are not to be offered, knowingly or unknowingly, to any party that distributes or retails via the Internet, or to any party that causes to distribution retailing via the Internet.

Children policy:

A baby cot is provided free of charge for children under two years old.

Maximum 1 extra bed can be added per room

Children under 6 years old

Maximum two (2) children per room under 6 years old are complimentary when sharing parents' room and utilizing existing bed.

If requesting extra bed, the surcharge will be VND 800,000 net/child/night including breakfast.

Children 6 – under 12 years old

Maximum 2 children of 6 – under 12 years old could be allowed to share the same bed with parents and surcharge is applied at VND 300,000 net/child/night including breakfast (NO extra bed is requested)

Any request of extra bed for children from 6 – under 12 years old could be charged at VND 1,100,000 net/child/night including breakfast.

Children 12 – under 16 years old

Only one child from 12 – under 16 years could be allowed in the room/villa and charged at VND 1,100,000 net/child/night including extra bed and breakfast.

A new room requested to be reserved in case 2 kids from 12 – under 16 years old.

Meal price is at standard rates.

Children 16 years and older

Considered as adult.

Meal price is at standard rates.

Only person from 16 years and older could be allowed for spa.

Surcharge VND 1,500,000 net/person/night for extra bed including breakfast, spa

Cancellation policy:

The company shall notify the hotel in writing of any cancellation prior to the minimum notice period. In the event of late notification, a cancellation charge will apply

- Low season: 01 Nov 2021 – 25 Dec 2021 and 03 Jan 2022 – 29 Jan 2022 and 06 Feb 2022 – 28 Feb 2022
If cancelled or modified 14 days prior to arrival date, no fee will be charged.

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If cancelled or modified within 7 - 13 days prior to arrival date, 50% of the total price of the reservation will be charged.
If cancelled or modified within 6 days prior to arrival date or in case of no-show, the total price of the reservation will be charged

- **Shoulder season:** 01 Mar 2022 – 29 Apr 2022 and 03 May 2022 – 30 Jun 2022 and 05 Sep 2022 – 31 Oct 2022
If cancelled or modified 21 days prior to arrival date, no fee will be charged.
If cancelled or modified within 15 - 20 days prior to arrival date, 50% of the total price of the reservation will be charged.
If cancelled or modified within 14 days prior to arrival date or in case of no-show, the total price of the reservation will be charged
- **High & Peak season:** 26 Dec 2021 – 02 Jan 2022 and 30 Jan 2022 – 05 Feb 2022 and 30 Apr 2022 – 02 May 2022 and 01 Jul 2022 – 04 Sep 2022
If cancelled or modified 30 days prior to arrival date, no fee will be charged.
If cancelled or modified 22 - 29 days prior to arrival date, 50% of the total night will be charged.
If cancelled or modified 21 days prior to arrival date or in case of no-show, the total price of the reservation will be charged

All cancellation must be informed in writing and have to be acknowledged by the resort. In the event of a non-arrival on the scheduled date, the company shall be held responsible for payment computed as the equivalent for the full length of stay. The above cancellation policy does not apply to group booking (>= 10 rooms) and it will be informed in confirmation letter.

Payment:

- **Low season:** 01 Nov 2021 – 25 Dec 2021 and 03 Jan 2022 – 29 Jan 2022 and 06 Feb 2022 – 28 Feb 2022
Full payment must be received 14 days prior to arrival (if no credit)
- **Shoulder season:** 01 Mar 2022 – 29 Apr 2022 and 03 May 2022 – 30 Jun 2022 and 05 Sep 2022 – 31 Oct 2022
Full payment must be received 21 days prior to arrival (if no credit)
- **High & Peak season:** 26 Dec 2021 – 02 Jan 2022 and 30 Jan 2022 – 05 Feb 2022 and 30 Apr 2022 – 02 May 2022 and 01 Jul 2022 – 04 Sep 2022
Full payment must be received 30 days prior to arrival (if no credit)

Once credit had been approved, the company is required to settle the account due to the hotel within 30 days of the invoice date. Should the company fail to settle the accounts within the said credit period, the hotel reserves the right to withdraw the credit facilities.
The hotel also reserves the right to refuse any new bookings on a credit basis until all outstanding accounts are settled.
Invoice paid after the credit period will attract interest at 1.5% per month. After 60 days bookings may not be honored or credit will be recalled and new bookings need to be settled 72 hours prior to arrival. Bank transfer fees will be the responsibility of the booking agent.

Bank Account Details:

Bank Account Name: CONG TY TNHH TAI THANH CONG
Bank name: Vietnam Joint Stock Commercial bank for Industry and Trade – Gia Lai branch
Bank Address: 01 Tran Hung Dao street, Pleiku City, Gia Lai Province, Vietnam
Account number in VND: 129 000 034 154
Account number in USD: 111 002 634 413
Swift Code: ICBVVNVX500

Terms and conditions:

This contract is subject to terms & conditions, which are an integral part of the contract.

1. Rates must be packaged and not applicable or to be distributed on internet.
2. Allotments are subject to request for all FIT bookings and contracted by separate annex with respective terms and conditions.
3. Room rates for group, series, incentive, corporate meeting, trade delegation and convention groups are available upon request.
4. There are no black-out dates or fixed restrictions at the time of contracting, however the hotel reserves the right to impose additional black-out dates.
5. Check-in time is 14:00. Before 06:00, full night charge will be applied. From 06:00 to 10:00, 50% of the room rate will be charged, from 10:00 to 14:00, 30% of room rate will be charged.
Check-out time is 12:00 noon. From 12:00 noon to 18:00, 50% of room rate will be charged and after 18:00 full night charge will be applied. Hotel may offer complimentary late check-out up to 14:00; however, this is subject to availability and at the hotel discretion.
6. Booking amendments: Changes in booking must be notified 14 days in advance during standard season and 21 days in high season and 30 days in peak season and unused room nights are not refundable for early departure. If room nights can be re-sold, these cancellation fees may be waived, subject to hotel discretion.
Extension of stay is subject to space and rate availability.
7. Approved vouchers should accompany individual arrivals unless a prior arrangement has been agreed in writing.
8. All prices are quoted in Vietnam Dong (VND) and agreed payment can be made in any of the following forms: Bank Draft, Bank Notes, Money Order or Telegraphic Transfer.
9. All room reservations are subject to availability and confirmation unless allocations have been confirmed.
10. The hotel must be featured as a 5 star category hotel. Text and images need to be approved and proof read by the hotel before publishing. Any hotel visuals presented should be made only the signed and dated approval and vetting from our side. Any default in any clause of this agreement shall result in immediate termination of this agreement. Wholesaler, tour operators, travel agents have to use selected hotel pictures to design or list resorts on brochure, flyer or other PR material as authorized by resort.
11. Please note all rates committed to your company are confidential and should not be published at any time or disclosed to a third party for any reason or purpose including on-line agents.
12. Under no circumstance are the given contracted rates to be passed on/sub-contracted to any dot.com/travel websites/third party company/organization that will result in the sale of our rooms be made at rates lower than those established by our hotel as benchmark

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rates. The hotel reserves the right to terminate this agreement without any advance notice and proceed to halt all acceptance of bookings from your company if any violations are found to have originated from your end unless a separate contract has been drawn up just for such purpose. Any feature of our hotel on your official company site should be made with no indication/mention of rates/tariff other than those authorized by the hotel. The accordance of room allocation from our end to your end is made on the mutual agreed of the parties that such allotment shall be used strictly and exclusively by you for purpose of free-sales by your retail agents and with the required brochure feature as stipulated in clause 1. This "retail agent" definition does not include the above third party internet booking sites nor do any other organizations that could possibly present our rate lower than our given benchmark sell at that point of time.

13. The hotel reserves the right at any time by giving notice in writing to cancel this agreement should the company fail to fulfil these terms & conditions.
14. Tax fluctuations: Should the Government either increase or decrease the percentage of tax collected on room and /or meal rates, or imposes additional taxes and levies, the hotel reserves the right to adjust the contract rates accordingly.
15. If for any reason beyond the Resort or Company's reasonable control, including but not limited to strikes; labor disputes; acts of God; fires; flood or other emergency conditions; any delay in necessary and essential repairs of the Resort, the Resort or the Company is unable to perform its obligations under this Agreement, such non-performance is excused and such party may terminate this Agreement without further liability or any nature, upon return of the Company's unused deposit. In no event shall Resort or Company be liable for consequential damages of any nature for any reason whatsoever.
16. In the event of currency devaluation or appreciation of over 10%, we reserve the right to review the contractual rates.
17. Disputes: It is expressly agreed and declared that the proper law of the Agreement is the law of Vietnam and that any disputes, action or other matters arising hereunder shall be determined by the court in Khanh Hoa Province, Vietnam in accordance with the laws and procedures of Vietnam under any and all circumstances.

Upon acceptance, please return a signed copy to us within 30 days of the issue date of this contract; if not, the contract is considered void.

On behalf of:
FUSION RESORT CAM RANH

Accepted by:

Mr. DAWID KOEGELENBERG
General Manager
Date:

Date: